

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: September 8, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

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If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	ALAMO VS. AHMED 2026-01542917	MOTION TO COMPEL ARBITRATION Defendant Arsalan Ahmed, Blake Rose, and Rave Manufacturing, Inc.’s Motion to Compel Arbitration is GRANTED. The Court declines to rule on Defendants’ objections as they are not material to the disposition of this Motion at this time. <u>Existence of a Valid Agreement</u> The party seeking to arbitrate must prove the existence of the agreement. (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223,236.) If an agreement exists, then public policy substantially favors arbitration (see Code Civ. Proc. § 1281.2 [court shall order arbitration if it determines valid agreement to arbitrate exists]) and the burden shifts to the party opposing arbitration to “demonstrate that an arbitration provision cannot be interpreted to require arbitration of the dispute.” (<i>Coast Plaza Doctors Hospital v. Blue Cross of California</i> (2000) 83 Cal.App.4th 677, 686-87.) But “[t]here is no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate.” (<i>Romo v. Y-3 Holdings, Inc.</i> (2001) 87 Cal.App.4th 1153, 1158, quoting <i>Marcus & Millichap Real Estate Investment Brokerage Co. v. Hock Investment Co.</i> (1998) 68 Cal.App.4th 83, 89.) Courts apply general state contract law to determine consent. (<i>Marcus & Millichap, supra</i>, 68 Cal.App.4th at 89.) Defendants have established the existence of an arbitration agreement. Defendants refer to the Partnership Agreement attached to the Complaint which contains a dispute resolution section. (Compl., Ex. 4.) <u>Agreement Encompasses the Dispute at Issue</u> “Any controversies or disputes arising out of or relating to this Agreement will be submitted to mediation in accordance with any statutory rules of mediation in California. If mediation is not successful in resolving the entire dispute or is unavailable, any outstanding issues will be submitted to final and binding arbitration under the rules of the American Arbitration Association.” (Compl., Ex. 4.) Plaintiffs claim their causes of action do not arise from the Agreement because they are not requesting interpretation performance of the Agreement. However, they are requesting the Agreement be rescinded and that their signatures to the Agreement

were procured by fraud. Thus, the claims relate to the Agreement and, thus, are covered by the arbitration provision.

Defenses to Arbitration

Waiver

Plaintiffs first argue Defendants waived their right to arbitrate. They claim Defendants failed to engage in friendly negotiations amongst the parties as required under the Partnership Agreement, delayed in filing the motion, refused to accept Plaintiff's offer to arbitrate, and engaged in bad faith.

Plaintiffs' facts showing Defendants did not engage in friendly negotiations and the delay in seeking arbitration are not sufficient to show there was a knowing waiver of Defendants' right to arbitrate. "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it." (*Ibid.*) Neither failing to engage in pre-dispute negotiations or failing to demand arbitration prior to responding to a complaint are sufficient to show intent to relinquish the right.

Defendants' refusal to accept Plaintiffs' offer to arbitrate which required shifting all costs to Defendants then offering to split them pursuant to the Costs section of the Agreement is not cause for a finding of bad faith. "The decisions likewise hold that the bad faith or wilful misconduct of a party may constitute a waiver and thus justify a refusal to compel arbitration. Although a number of authorities properly caution that a waiver of arbitration is not to be lightly inferred, our cases establish that no single test delineates the nature of the conduct of a party that will constitute such a waiver." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 983 (cleaned up).) Similarly, Defendants claiming Plaintiffs did not have an interest in Rave but later reversing its claims is insufficient to constitute a bad faith waiver.

Rescission

"In order to defeat a petition to compel arbitration, the parties opposing a petition to compel must show that the asserted fraud claim goes specifically 'to the "making" of the agreement to arbitrate,' rather than to the making of the contract in general." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951,

		973.) Here, Plaintiffs fraud allegations relate to the contract in general and no fraud allegation refers to the arbitration provision. Thus, Plaintiff's rescission defense does not apply. Accordingly, Defendants have shown the existence of an agreement to arbitrate which encompasses the claims at issue and Plaintiffs have failed to demonstrate a defense to enforcement. Thus, Defendants' motion is granted. The Court sets an OSC re: ADR for 3/12/2027 at 9:00 a.m., in Dept. C32.
2.	BAQI VS. MACFOXBIKE 2026-01571161	MOTION FOR PREFERENCE The unopposed Motion for Trial Preference by Plaintiff Farah Baqi, a minor, by a through Guardian ad Litem Faridoon Baqi is GRANTED. Code of Civil Procedure section 36(b) states, "A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision." Section 36(f) further provides, "(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." Here, Plaintiff was born on 1/9/13 and is currently 13 years old. She sues for personal injuries sustained while she was riding an E-bike and therefore has a substantial interest in the litigation. Plaintiff's counsel declares that all essential parties have been served with process pursuant to Code of Civil Procedure section 36(c)(1).) Plaintiff timely served the motion on Defendants by mail on 7/9/26. The motion is unopposed. Plaintiff is entitled to trial setting preference under section 36(b) and the motion is granted. Counsel shall appear at the hearing to discuss their availability for trial on a date within 120 days.

3.	REED VS. KAALOA 20226-01560543	MOTION FOR PRELIMINARY INJUNCTION Plaintiff David J. Reed’s request for a preliminary injunction restraining defendants Pamela J. Kaaloa and Penelope aka Penny Jaspar and all persons acting in concert with them, from transferring, withdrawing, dissipating, encumbering, concealing, or otherwise disposing of any funds held in a bank account for the Pamela J. Kaaloa Revocable Trust – Dated April 15th, 2019 is DENIED. <u>Plaintiff’s First Amended Complaint</u> As an initial matter, the Court notes Plaintiff filed a first amended complaint (FAC) on 8/25/26. Plaintiff’s motion for a preliminary injunction was filed the same day he filed his initial complaint on 4/3/26. The FAC is substantially identical to the complaint other than the removal of the two causes of action for unjust enrichment and equitable accounting. As the allegations forming the basis for this motion have not materially changed, the Court will consider the motion. <u>Plaintiff’s Allegations</u> Kaaloa currently resides in an assisted living facility. (FAC ¶ 2.) (It appears Kaaloa is Plaintiff’s mother-in-law and Jaspar’s sister. (Opp. at 1:23-24.)) Kaaloa owned a one-bedroom condominium. (FAC ¶ 7.) From approximately December 2019 to 10/23/25, Plaintiff provided financial support for Kaaloa’s housing-related expenses, assisted living costs, medical and hygiene supplies, and other care and costs, with the express understanding that such amounts would be repaid. (FAC ¶ 8.) On 12/1/24, Kaaloa executed a Promissory Note (Note) agreeing to sell the condominium and to repay Plaintiff from the balance of the sale proceeds for any costs incurred on her behalf. (FAC ¶ 9.) The condominium was placed on the market on 7/25/25 and sold on 11/5/25. (FAC ¶ 11.) On or about late October 2025, the day Kaaloa was to sign closing documents, Jaspar attempted to stop the sale. (FAC ¶ 11.) On 10/23/25, the day after signing of closing documents, Jaspar obtained a durable power of attorney (POA) purporting to control Kaaloa’s finances. (FAC ¶ 3.) On 10/26/25, Plaintiff presented the Note and receipts to Kaaloa for repayment, and Kaaloa refused to pay. Plaintiff then sent Jaspar the Note, which Jaspar ignored and did not pay. (FAC ¶ 12.)
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Plaintiff's funds used for Kaaloa's benefit represented his retirement savings and were expended in reliance on Kaaloa's agreement to repay from the condominium sale proceeds. (FAC ¶ 13.) Proceeds from the condominium sale and/or Kaaloa's other funds are, in whole or in part, held or controlled by Jaspar and/or are or were deposited in accounts including a Chase Bank account in Jaspar or Kaaloa's name. (FAC ¶ 14.)

Legal Standard

"A superior court must evaluate two interrelated factors when ruling on a request for a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749 [citation omitted].) "Weighing these factors lies within the broad discretion of the superior court." (*Ibid.* [citations omitted].) The burden is on the party "seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction." (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481 [citations omitted].)

Likelihood Plaintiff will Prevail on the Merits

Under the first prong, Plaintiff is not required to present a "clear showing" of eventual success on the merits but only to meet the "reasonable probability" of prevailing standard. (*Santa Clara Valley Water Dist. v. Eisenberg* (2025) 117 Cal.App.5th 714, 744 [citation omitted].)

Plaintiff contends he is likely to succeed on the merits as the claim is based on a signed promissory note obligating Kaaloa to pay "the entirety of the proceeds" from the condominium sale to Plaintiff.

Defendants contend Plaintiff does not address the merits of each cause of action alleged in the FAC. Defendants further contend Plaintiff relies, at least in part, upon an alleged oral agreement between Kaaloa and Reed made on or about 12/31/19 but provides no specific terms of the agreement or consideration exchanged. Defendants further contend the Note was executed approximately six years after the alleged oral agreement, which creates an additional material issue regarding the operative agreement between the parties including whether the Note modified, superseded, or memorialized any prior understanding. Finally, Defendant contend the Note lacks significant consideration.

As an initial matter, "A promissory note is presumed to have been given for a sufficient consideration . . . and in an action thereon, the introduction of the note in evidence establishes a prima facie right to

recover according to its terms. The burden of showing a want of consideration . . . is cast upon the party seeking to avoid it, and if he fails to make this showing, the presumption prevails and furnishes sufficient evidence to support a finding that the note was given for a good and valuable consideration.” (*Saks v. Charity Mission Baptist Church* (2001) 90 Cal.App.4th 1116, 1133 [citation omitted].)

The Note is attached as Exhibit A to Plaintiff’s original complaint. Plaintiff alleges the Note reflects the parties’ agreement for Kaaloa to repay Plaintiff for any costs incurred on her behalf. (FAC ¶ 9.) Plaintiff then sets forth in detail the costs Plaintiff alleges he actually incurred on Kaaloa’s behalf totaling \$194,738.91. (Compl. ¶ 15.) While Defendants contend the Note lacks consideration, they fail to meet their burden in making this showing. As such, the presumption the Notice was given for sufficient consideration prevails.

Defendants’ contention Plaintiff fails to provide details of an alleged oral agreement, which may create a material issue regarding any agreement based on the Note is also unavailing.

Civil Code section 1625 provides, “The execution of a contract in writing, whether the law requires it to be written or not, supersedes all the negotiations or stipulations concerning its matter which preceded or accompanied the execution of the instrument.” This section “is in effect a merger provision that makes the writing, rather than prior oral discussions or agreements, the controlling agreement.” (*Tomlinson v. Qualcomm, Inc.* (2002) 97 Cal.App.4th 934, 945 fn. 14 [citation omitted].)

Additionally, Code of Civil Procedure section 1856, subdivision (a) provides, “Terms set forth in a writing intended by the parties as a final expression of their agreement with respect to the terms included therein may not be contradicted by evidence of a prior agreement or of a contemporaneous oral agreement.”

Thus, rather than creating any ambiguity with respect to the validity of the Note, the fact it was executed years after any alleged oral agreement between Plaintiff and Kaaloa supports a finding the Note, and not prior oral agreements, is controlling. Moreover, Plaintiff’s causes of action do not rely on an alleged oral agreement, but on the terms of the Note itself.

Ultimately, Defendants do not dispute Kaaloa signed the Note. The Note identifies “Lender” as Plaintiff and “Borrower” as Kaaloa. The Note states “borrower agrees to the sale of the property located at 85 Vernon Street, Unit 103. Oakland, CA 94610.” The Note further states, “The borrower agrees to pay the entirety of the proceeds, hereafter known as the principal from the sale of the property located at 85 Vernon Street, Unit 103. Oakland, CA 94610, to David J. Reed.”

Plaintiff alleges the Note obligated Kaaloa to pay the entirety of the property sale proceeds to Plaintiff. (FAC ¶¶ 17, 21.) Plaintiff also alleges the Note is an agreement to “repay Plaintiff from the balance of the sale proceeds (the ‘principal’) for any costs incurred on her behalf. (FAC ¶ 8.) Plaintiff’s demand letter to Jaspas demands the amount of \$194,738.91 as “funds from the sale are now available to settle the debt.” (Compl., Ex. B.) Though the amount Plaintiff seeks in the FAC may be less than the “entirety of the sale proceeds” (i.e., the alleged debt of \$194,738.91), it does not affect the determination of whether Kaaloa signed the Note, which Defendants do not dispute.

Defendants also do not dispute Plaintiff’s request for \$194,738.91 is based on services Plaintiff provided for Kaaloa’s benefit nor the validity of any of the itemized costs set forth in the FAC.

Finally, Defendants do not provide any authority for their contention Plaintiff fails to address the merits of each cause of action alleged in the FAC. Each of Plaintiff’s causes of action are based on money allegedly owed to Plaintiff based on the Note and the services Plaintiff provided to Kaaloa. Thus, the analysis regarding the validity of the Note is sufficient to address the merits for purposes of this motion.

Based on the above, the Court finds Plaintiff has satisfied the first prong by demonstrating a “reasonable probability” of prevailing.

Balancing of Harm

“Irreparable harm may be established where there is the fact of an injury, such as that arising from a breach of contract, but where there is an inability to ascertain the amount of damage. In other words, to say that the harm is irreparable is simply another way of saying that pecuniary compensation would not afford adequate relief or that it would be extremely difficult to ascertain the amount that would afford adequate relief.” (*DVD Copy Control Assn., Inc. v. Kaleidescape, Inc.* (2009) 176 Cal. App. 4th 697, 722 [citation omitted]. “In general, if the plaintiff may be fully compensated by the payment of damages in the event he prevails, then preliminary injunctive relief should be denied.” (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1471 [citation omitted].)

Plaintiff contends there is a risk of irreparable harm due to potential rapid transfer or spending of liquid funds. Plaintiff contends the requested injunction is narrowly tailored to maintain the status quo by freezing only funds in the identified account and only up to the disputed amount.

Defendants contend the Chase account was opened with the proceeds from the sale of the property and are used solely to fund Kaaloa's assisted living and care expenses, which are approximately \$7,370.00 a month. (Jaspar Decl., ¶¶ 5, 6.) Defendants contend freezing the account even for the requested amount of \$194,738.91 would therefore have an immediate and significant impact on the ability to timely pay for and maintain Kaaloa's housing and care which is an extreme hardship. (Jaspar Dec., ¶ 8.)

As an initial matter, Plaintiff has not demonstrated monetary compensation would not afford adequate relief or that it would be extremely difficult to ascertain the amount that would afford adequate relief. Plaintiff request for monetary damages is not only identified by a specific amount, \$194,738.91, but supported by an itemization of the specific costs incurred that make up that amount. (FAC ¶ 15.)

Additionally, while Plaintiff contends there is a risk of rapid transfer or spending of liquid funds, Kaaloa is the only signatory to the account and Jaspar has no control or signing authority on the account. (Jaspar Decl., ¶ 7.) Moreover, Kaaloa's expenses for the assisted living center are the only expenses being drawn from the account. (Jaspar Decl., ¶ 5.) As such, Plaintiff has not demonstrated a risk of rapid transfer or use of funds where it would presumably be in Kaaloa's benefit for such funds to remain in the account to pay for her monthly living expenses.

Conversely, Defendants' ability to pay for Kaaloa's monthly expenses would potentially be impacted by the relief requested. The most recent account statement provided for the period of 4/23/26 to 5/22/26 shows a balance of \$277,275.30. (Jaspar Decl., Ex. D.) Freezing the account in the amount requested by Plaintiff would leave a remaining balance of \$82,536.39, which would cover approximately 11 months of Kaaloa's care based on Kaaloa's monthly expenses of approximately \$7,370.00, three months of which have already presumably passed based on the statement date. Thus, though not immediate, there is the potential Kaaloa's ability to cover her living expenses at the assisted living center would be directly impacted depending on the length of the litigation.

Given the above, Plaintiffs have not sufficiently shown the balancing of harm lies in their favor.

Ultimately, the Courts finds weighing the two factors discussed above do not support the issuance of a preliminary injunction.

4.	WEBER VS. MORADO 2025-01511904	MOTION FOR PROTECTIVE ORDER The Motion for Protective Order by Defendants Corinne Morado, GenCare Connects, Inc.; I Care Hospice, Inc., and Daian Corporation (“Defendants”) is CONTINUED to 10/6/26 at 9:00 a.m., in Dept. C32. <u>Legal Standard:</u> Code of Civil Procedure sections 2033.040 and 2033.050 require a party serving more than 35 RFAs to provide a declaration stating the number of RFAs is warranted by the nature and complexity of the issues. Code of Civil Procedure section 2033.280 states in part: “(a) When requests for admission have been made, the responding party may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. (b) The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (1) That the set of admission requests, or particular requests in the set, need not be answered at all. (2) That, contrary to the representations made in a declaration submitted under Section 2033.050, the number of admission requests is unwarranted.” <u>Application:</u> Defendants assert Plaintiff has served excessive requests for admission. Specifically, Plaintiff served nine sets of RFAs totaling 282 RFAs to Defendants including separate sets of RFAs by each of the three Plaintiff/Cross-Defendants to each of the Defendants accompanied by form interrogatory 17.1. Defendants assert that all Defendants are essentially the same entity because Defendant Morado owns or controls the corporate Defendants. Plaintiff asserts that no Plaintiff has served any Defendant individually with more than 35 requests. However, Defendants assert that the RFAs ask “YOU” to admit various matters, with “YOU” defined as all Defendants/Cross-Complainants. Therefore, each Defendant is being asked to admit over 100 matters on behalf of all Defendants. The motion states that counsel attempted to meet and confer via email. (Tong Decl., ¶ 6.) However, counsel was required to meet
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		and confer in person or by telephone/videoconference before filing the motion. (Code Civ. Proc. §§ 2016.040, 2033.080(a).) The motion is therefore continued to allow the parties to comply with section 2016.040. Moving Defendants shall file and serve a three-page supplemental declaration, describing their compliance with this order and the status of the dispute, no later than nine court days before the continued hearing date. Plaintiff shall do the same no later than five court days before the hearing date. The Court expects the parties to work cooperatively to resolve discovery disputes. The Court is not inclined to award sanctions to either side in this matter because neither side has diligently attempted to resolve the dispute by proposing a reasonable compromise. However, if either side fails to diligently meet and confer, the Court may impose sanctions against that party or their counsel. Inability to resolve routine discovery disputes without Court intervention may result in the Court appointing a discovery referee at the parties' expense pursuant to Code of Civil Procedure section 639.
5.	QUERIDO VS. TEACHER 2022-01243394	MOTION TO TAX COSTS Defendant Theodore Michael Teacher's Motion to Tax Costs is GRANTED in part and DENIED in part as set forth below. Plaintiff's memorandum of costs is taxed in the amount of \$11,158.08. <u>Legal Standard</u> Code of Civil Procedure section 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure section 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. (Code Civ. Proc. § 1033.5(a), (b).) An item not specifically allowable under subdivision (a) or specifically prohibited under subdivision (b) may nevertheless be recoverable in the court's discretion if "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(2).) "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them

as costs. (*Ibid.*) But conclusory assertions alone are not enough to cause this shift to happen. “[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.)

Depositions

The Court finds numerous additional fees which do not appear to be reasonably necessary and included to inflate the costs of depositions. Specifically, fees for transcript quality control and processing; electronic delivery, handling, and archive; production and shipping of original transcript; code compliance letter; transcript teleconference per page surcharge; transcript video surcharge; deposummary; and extra exhibit copies. Thus those fees are taxed.

The Court finds the expedition fees were reasonably necessary as to many depositions because they were completed near the time of trial on several occasions. However, Jonathan Eskenazi, MD’s second deposition includes such a fee, however, there was no impending trial at the time. Thus, that fees is taxed.

Accordingly, the Court taxes \$5,828.33 from the claimed deposition costs.

Service of Process

In reply Defendant withdraws his request to tax the service of process fees.

Witness Fees

Plaintiff seeks to claim costs for collecting Plaintiff’s medical records. Plaintiff admits they are not witness fees but claims they are still recoverable because a defendant is permitted to recover fees for deposition subpoenas for business records only. (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 578.) However, a plaintiff can request their own medical records without resorting to a subpoena. Thus, these costs were merely convenient and not reasonable. Therefore, the Court taxes \$2,476.07 from claimed witness fees.

Court Reporter Fees

Defendant claims the court reporter fees do not reflect the 50/50 split agreed to by the parties. Defendant has failed to submit sufficient evidence to show the court reporter fees claimed are the entire fees rather than the agreed upon split fees. The invoices even note the fees were agreed to be split and note the quantity as 0.5

		rather than 1. Thus, Defendant’s request to tax the court reporter fees is denied. <u>Models, Enlargements, and Photocopies of Exhibits</u> The two trial binders for counsel were reasonably helpful to aid the trier of fact by allowing counsel to conduct its case in an organized fashion. Thus, the Court taxes the \$339.72 withdraw in opposition and denies any other request to tax. <u>Other</u> Plaintiff’s messenger fees to transport exhibits to and from the courthouse are merely convenient rather than reasonably necessary to the conduct of litigation. Thus, the Court taxes \$624.50 for the claimed messenger fees. Plaintiff’s observer at the defense medical examination observer is reasonably necessary to allow Plaintiff to properly defend the findings of the examination. Thus, the Court denies the request to tax this cost. The Court taxes the \$556.56 for a charge “CVB (AMEX) – Fairmont Breakers, Long Beach CA – C. Bulone — trial-related lodging.” There is no other explanation for the charge and trial was not conducted in Long Beach. Finally, Defendant seeks to tax half of the \$12,161.25 for the trial technological support services. Defendant claims the parties agreed to split the costs and Plaintiff has not submitted evidence the invoice only reflects half of the costs. “[T]he losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) Defendant fails to demonstrate the claimed costs are the entire cost of the services. Thus, the Court denies the request to tax this cost.
7.	REVNUE CORP. VS. CORTEZ 2025-01531657	DEMURRER TO COMPLAINT Defendants John Cortez; Think Scale, LLC; and Bundee Technologies, Inc.; and Cindy Wu’s Demurrer to the Complaint is OVERRULED in part as to the 1st-3rd causes of action and SUSTAINED in part as to the 4th cause of action. Defendants’ request for judicial notice is granted. The Court exercises its discretion to consider the untimely reply. The rule of exclusive concurrent jurisdiction applies where two or more actions involve the same subject matter and the court in the first action has the power to grant complete relief. (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 788-789.)

“Under this doctrine, when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others.” (*Shaw v. Superior Court of Contra Costa County* (2022) 78 Cal.App.5th 245, 255.) “Under the rule of exclusive concurrent jurisdiction, when two California superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved. The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits.” (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 769-770.)

In the Alameda action, Reina IP Holdings, LLC and Premier Trust are suing Revnue, Sharma, and Cortez for fraud, breach of contract, breach of fiduciary duties, and conspiracy related to his \$3,000,000 investments in Revnue. He claims Cortez and Sharma failed to properly grow Revnue and had induced him to invest without any intention of obtaining additional investments, customers, or growing Plaintiffs’ investments. (RJN, Ex. B, ¶¶ 13-27.) Thus, the claims relate to Revnue, Sharma, and Cortez’s handling of Reina and Premier’s investments and their duties to the investment companies as investors.

This action relates to Revnue’s claims against Cortez and his affiliated entities for breach of fiduciary duty, fraud, and attorney’s fees related to the Alameda action.

As to the 1st-3rd causes of action, Plaintiff claims Cortez used Revnue funds to pay for a family trip to the Philippines (Compl., ¶ 16), set up a Philippines subsidiary and internship to divert funds from Revnue (Compl., ¶¶ 18-20), added family members to Revnue’s payroll to further divert Revnue’s funds (Compl., ¶¶ 21-23), and misrepresented to Sharma Revnue’s financial status (Compl., ¶¶ 23-25.) While some evidence will inevitably be shared between the two cases, they address fundamentally different wrongs. The Alameda action addresses Revnue, Sharma, and Cortez’s duties to Reina and Premier while this action addresses Cortez’s duties to Revnue.

Plaintiff’s 4th cause of action does create a significant risk of conflicting rulings. Plaintiff seeks to recover attorney’s fees incurred as a result of having to defend the Alameda action due to Cortez’s alleged wrongful conduct. Whether or not Plaintiff is entitled to such relief would require a determination from the Alameda court regarding whether Cortez engaged in any wrongful conduct as to

		Reina and Premier. Thus, this cause of action is stayed as the issue is within the Alameda court’s exclusive jurisdiction.
9.	NGUYEN VS. NGUYEN 2026-01560555	DEMURRER TO COMPLAINT Defendants Lavie Tue Nguyen, Vincent Nguyern, VSCosmetics Corporation, Lavie Home Shopping LLC, and Lavie Home Shopping Corporation’s Demurrer to Plaintiff Nhat Alexander Nguyen’s Complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. <u>Timeliness of Opposition</u> Defendants’ note Plaintiff’s opposition was untimely as it was served on 8/28/26, but due on 8/25/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing to Cal. Rules of Court, rule 3.1300, subd. (d); <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [citations omitted].) As Defendants have filed a reply addressing the merits of the opposition and do not contend to be prejudiced by its untimely service, the Court considers the late-filed opposition. In the future, the Court may decline to consider documents not filed and served in compliance with Code of Civil Procedure section 1005, subdivision (b). <u>Direct versus Derivative Action</u> Defendants contend Plaintiff’s complaint is defective as “Plaintiff’s allegations repeatedly concern depletion of LLC funds, misuse of LLC inventory, and reduction of LLC enterprise value.” (Dem. at 6:11-12) and Plaintiff has not properly pled a derivative action. Plaintiff contends his “injury is personal, out-of-pocket, and distinct from any injury to the entity.” (Opp. at 8:1.) “An action is deemed derivative ‘if the gravamen of the complaint is injury to the corporation, or to the whole body of its stock and property without any severance or distribution among individual holders, or it seeks to recover assets for the corporation or to prevent the dissipation of its assets.’ When a derivative action is successful, the corporation is the only party that benefits from any recovery; the shareholders derive no benefit ‘except the indirect benefit resulting

from a realization upon the corporation's assets.'" (*Schrage v. Schrage* (2021) 69 Cal.App.5th 126, 150 [cleaned up].)

"“The stockholder's individual suit, on the other hand, is a suit to enforce a right against the corporation which the stockholder possesses as an individual.’ For example, ‘[i]f the injury is one to the plaintiff as a stockholder and to him individually, and not to the corporation, as where the action is based on a contract to which he is a party, or on a right belonging severally to him, or on a fraud affecting him directly, it is an individual action.’ . . . If the injury is not incidental to an injury to the corporation, an individual cause of action exists.” (*Ibid.* [cleaned up].)

Defendants rely on *PacLink Communications Intern., Inc. v. Superior Court* (2001) 90 Cal.App.4th 958, 961, where members of an LLC alleged the majority shareholders defrauded them through a series of transfers of the LLC's assets. They alleged the fraudulent transfers rendered the LLC insolvent and thereby defrauded plaintiffs by preventing them from being paid for their Ownership Interests in the LLC and its business and assets. (*Id.* at pp. 961-962.)

The court found plaintiffs lacked standing to bring their claims as individuals because the real party in interest was the LLC, stating “[t]he essence of plaintiffs’ claim is that the assets of [the LLC] were fraudulently transferred without any compensation being paid to the LLC. This constitutes an injury to the company itself. Because members of the LLC hold no direct ownership in the company’s assets [citation], the members cannot be directly injured when the company is improperly deprived of those assets. The injury was essentially a diminution in the value of their membership interest in the LLC occasioned by the loss of the company’s assets. Consequently, any injury to plaintiffs was incidental to the injury suffered by [the LLC].” (*Id.* at p. 964.)

Here, Plaintiff alleges the LLC's business consists of purchasing inventory of health and beauty supplement products to sell to the community via a home shopping channel. (Compl. ¶ 16.) Plaintiff alleges the parties agreed capital contributions to the LLC would be used to purchase inventory (i.e. supplements) and that Vincent's corporation would manufacture the supplements for the LLC. (Compl. ¶ 14.) Plaintiff alleges “[a]ccording to the operating agreement and verbal representations from LAVIE and Vincent Nguyen, when the supplements would be sold, the profits would be split according to each member's capital contributions.” (Compl. ¶ 44.)

Plaintiff alleges he paid \$243,544.45 as a capital contribution directly to Lavie and Vincent to purchase the supplements but “has not received any distributions of profits from the LLC.” (Compl. ¶¶ 17, 65.) Plaintiff alleges Defendants used his contribution for their

own use. (Compl. ¶ 19.) Plaintiff further alleges Lavie and Vincent refused to provide an update regarding the supplements or the opportunity for Plaintiff to inspect the LLC records, including the purchase orders, shipping, receiving or any related details for the purchase of the supplements. (Compl. ¶¶ 20, 22.)

Plaintiff therefore does not allege an injury to the LLC itself or an injury that is essentially a diminution in the value of his membership interest in the LLC. Rather, Plaintiff alleges he himself was denied profits owed under the parties' agreement, which were to be based on a percentage of his personal contribution. Thus, unlike in *PacLink* where the court found the members "cannot be directly injured when the company is improperly deprived of [the company's] assets," Plaintiff alleges a direct injury based on the denial of profits due to him under an agreement by the parties. As the gravamen of Plaintiff's cause of action is injury to himself, the Court finds Plaintiff is permitted to bring a direct action.

First Cause of Action for Breach of Contract

"To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 [citation omitted].) "If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (*Ibid.*)

Plaintiff attaches the Operating Agreement and Amendments at issue as Exhibits 4 and 5 to the complaint. (Compl. ¶¶ 8, 12, 14, 31). Plaintiff alleges:

- On or about November 26, 2025, NHAT, LAVIE and PHUC VU agreed to amend the operating agreement as follows: . . . NHAT, LAVIE and Jasper agreed to purchase inventory in the supplements by contributing cash to the LLC in the following percentages of the total purchase price: NHAT 42.5%, LAVIE 42.5%, and Jasper 15%. . . [See Amendment to Operating Agreement dated November 26, 2025, Exhibit 5]. (Compl. ¶ 14.)
- Pursuant to the parties' agreement and course of dealing, NHAT contributed capital in the amount of \$243,544.45 for the LLC to acquire products from VSCosmetics Corporation. LAVIE and Vincent Nguyen breached the parties' agreement by failing to place orders, manufacture and deliver the supplements, although the capital contributed for that purpose has not been accounted for. (Compl. ¶ 32.)
- Despite demand, LAVIE, Vincent Nguyen and all named defendants have failed and continue to fail to pay any portion

of the \$243,544.45. NHAT has performed all conditions, covenants, and promises required to be performed on his part. (Compl. ¶ 35.)

This is sufficient at the pleading stage.

The Court OVERRULES the demurrer to the first cause of action.

Second Cause of Action for Fraud and Third Cause of Action for Intentional Misrepresentation

Defendant demurs to the second and third cause of action on the ground fraud is not plead with specificity.

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citations omitted].)

Plaintiff alleges Defendants intentionally made false representations regarding the purchase of the supplements with the intent to induce Plaintiff to make contributions, and that Plaintiff reasonably relied on those representations and was damaged. (Compl. ¶¶ 44, 45, 47, 50.)

This is sufficient at the pleading stage.

Defendant further contends Plaintiff’s fraud cause of action is barred by the economic loss doctrine, which provides, “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922 [citations omitted].)

An element of independence from the parties’ contractual rights must be present to avoid application of the economic loss rule. (*See Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th, 20-21.) “[I]ndependence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant’s conduct in fraudulently inducing someone to enter a contract is separate from the defendant’s later breach of the contract or warranty provisions that were agreed to.” (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 841.)

As discussed above, Plaintiff has sufficiently alleged a cause of action for fraud based on intentional misrepresentations.

The Court OVERRULES the demurrer to the second and third causes of action.

Fourth Cause of Action for Unjust Enrichment

“[T]here is no cause of action in California for unjust enrichment.” (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 [citations omitted].) Rather, “[u]njust enrichment is synonymous with restitution.” (*Ibid.* [citation omitted].) “Under the law of restitution, ‘[a]n individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another’s expense.’ . . . As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract.” (*Ibid.* [cleaned up].)

“It is true that modern rules of pleading generally permit plaintiffs to ‘set forth alternative theories in varied and inconsistent counts.’ Thus, if a plaintiff was uncertain as to whether the parties had entered into an enforceable agreement, the plaintiff would be entitled to plead inconsistent claims predicated on both the existence and absence of such an agreement. A plaintiff may not, however, pursue or recover on a quasi-contract claim if the parties have an enforceable agreement regarding a particular subject matter.” (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1388 [cleaned up].)

Plaintiff alleges the parties *did* have a contract governing the parties’ allocation of profits based on capital contributions and does not allege the Operating Agreement is unenforceable.

The Court SUSTAINS the demurrer to the fourth cause of action.

Fifth Cause of Action for Accounting

An action for an accounting has two elements: (1) “that a relationship exists between the plaintiff and defendant that requires an accounting” and (2) “that some balance is due the plaintiff that can only be ascertained by an accounting.” (*Sass v. Cohen* (2020) 10 Cal.5th 861, 869 [citations omitted].) “The action carries with it an inherent limitation; an accounting action ‘is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation.’” (*Ibid.* [citations omitted].)

“An action for an accounting has been characterized as ‘a means of discovery.’ This characterization is consistent with the idea that a plaintiff seeking an accounting cannot ‘allege[] the right to recover a sum certain’ because he or she lacks the information necessary to determine the precise amount that may be due.” (*Ibid.*)

While Plaintiff contends an accounting is warranted due to Defendants refusal to provide Plaintiff with records, Plaintiff alleges he paid the certain sum of \$243,544.45 as a capital contribution to Lavie and Vincent. (Compl. ¶ 14.)

The Court SUSTAINS the demurrer as to the fifth cause of action.

Sixth Cause of Action for Money Had and Received

“A cause of action for money had and received is stated if it is alleged [that] the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff.]]’ (*Avidor v. Sutterps Place, Inc.* (2013) 212 Cal.App.4th 1439, 1454, [citations omitted].) “The claim is viable ‘wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.’” (*Ibid.* [citations omitted].)

“As juries are instructed in CACI No. 370, the plaintiff must prove that the defendant received money ‘intended to be used for the benefit of [the plaintiff],’ that the money was not used for the plaintiff’s benefit, and that the defendant has not given the money to the plaintiff.” (*Ibid.*)

Plaintiff alleges he advanced money to Defendants money intended to be used for Plaintiff’s benefit and Defendants retained the benefit of these payments by converting it to their own personal use. (Compl. ¶¶ 71-74.)

These allegations are sufficient at the pleading stage.

Accordingly, the Court OVERRULES the demurrer to the sixth cause of action.

Seventh Cause of Action for Declaratory Relief

To qualify for declaratory relief, an action must present two essential elements: 1) a proper subject of declaratory relief, and 2) an actual controversy involving justiciable questions relating to the rights of obligations of a party. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546; Code Civ. Proc. § 1060.)

The “proper subjects” of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes and include contracts and written instruments and statutory interpretation. (*See Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410; *Doan v. State Farm General Ins. Co.* (2011) 195 Cal.App.4th 1082, 1095.)

Plaintiff alleges a controversy has arisen as to the parties respective rights and duties regarding the use of the \$243,544.45. (Compl. ¶

		79.) As such, Plaintiff seeks a judicial determination of rights and duties with respect to Plaintiff's cash property. This is sufficient at the pleading stage. Moreover, redundancy of a cause of action is not grounds for sustaining a demurrer. (<i>See Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) The Court OVERRULES the demurrer to the seventh cause of action. <u>Allegations as to Defendant LaVie Home Shopping Corporation</u> Plaintiff brings the second through sixth causes of action against LaVie Home Shopping Corporation. Defendants contend Plaintiff fails to adequately allege what legal or operational role LaVie Home Shopping Corporation played in the alleged transactions. Plaintiff alleges the complaint alleges all defendants were the agents, employees, and alter egos of one another. While a plaintiff is "required to allege only 'ultimate rather than evidentiary facts'" to support an alter ego theory (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 236), Plaintiff's allegation "each of the Defendants was the employee, agent, servant of each of the other defendants" (Compl. ¶ 6) is insufficient. Additionally, while Plaintiff contends the complaint alleges Plaintiff's contribution may have been commingled with Defendants' personal accounts and/or their other entities, including Lavie Home Shopping Corporation, those allegations do not sufficiently allege specific actions taken by Lavie Home Shopping Corporation to support the various causes of action. The Court SUSTAINS the demurrer with respect to claims asserted against LaVie Home Shopping Corporation.
10.	ARA, INC. VS. THE CUT AND SEW CO., INC. 2026-01546893	DEMURRER TO ANSWER The Demurrer to Answer by Plaintiff ARA, Inc. dba Lone Oak Payroll is OVERRULED. Plaintiff contends that twelve of Defendant's affirmative defenses are unsupported by sufficient facts.

		When a defendant bears the burden of proving a defense at trial, it is a “new matter” or “affirmative defense” that must be specially pleaded in the answer. (See <i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436, 1442 [failure to plead equitable defenses waived those defenses].) A defendant raising such new matters must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515.) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]” (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 732.) “There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (<i>Id.</i> at 733.) Defendant alleges various defenses without stating additional facts. Defendant asserts that any vagueness in its affirmative defenses is due to Plaintiff’s failure to attach the operative contract to its complaint, and Defendant was not a signatory and is therefore unaware of the contract’s specific terms. At the pleading stage, Defendant has adequately asserted the disputed affirmative defenses which respond to the allegations in Plaintiff’s complaint sufficient put Plaintiff on notice to conduct further discovery into their factual bases. Therefore, the demurrer is overruled.
11.	AMER VS. SAFETY PROTECTION SECURITY, LLC. 2025-01530924	1. DEMURRER TO COMPLAINT 2. MOTION TO STRIKE COMPLAINT Defendant The Islamic Society of Orange County’s Demurrer and Motion to Strike Portions of the Complaint are CONTINUED to 10/13/26 at 9:00 a.m., in Dept. C32. The parties/counsel have not engaged in sufficient attempts to meet and confer. If, upon review of the parties’ declarations, “a court learns no meet and confer has taken place, or <i>concludes further conferences between counsel would likely be productive</i>, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the

		need for a demurrer, and to continue the hearing date to facilitate that effort.” (<i>Dumas v. Los Angeles County Bd. of Supervisors</i> (2020) 45 Cal.App.5th 348, 356, fn. 3 [emphasis added].) Here, the parties telephonically met and conferred on 2/27/26. (Wang Decl. iso Defendant’s Demurrer/Motion to Strike, ¶ 6; Cojocnean Decl. iso Plaintiff’s Opposition, ¶ 8.) After the call, Defendant sent a confirming email stating, “This email confirms that Plaintiff will amend the Complaint.” (Wang Decl., Ex. C, p. 3.) On 3/17/26, when Defendant followed up with a draft stipulation to amend, Plaintiff responded, that he was “willing to amend the complaint in exchange for ISOC’s waiver of their right to file a motion to strike or demurrer. To facilitate that process, we can draft a proposed amended complaint” and that if ISOC was unwilling “to proceed in that manner,” it should file its responsive pleading. (Wang Decl., ¶ 7, Ex. C; Cojocnean Decl. ¶ 9, Ex. E.) Defendant refused and noted “there was no discussion of any waiver during the 2/27/26 call.” (Wang Decl., ¶ 8, Ex. C; see Cojocnean Decl. ¶ 9, Ex. E.) Plaintiff’s agreement to amend concedes the complaint is deficient, at least in part. Yet Plaintiff refused to amend unless Defendant waived its right to file a demurrer or motion to strike the amended pleading. Thus, the court finds Plaintiff’s conduct lacked good faith and further meet and confer efforts would be productive. The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. Counsel shall discuss whether a first amended complaint would resolve some or all of the issues raised in the demurrer and motion to strike. If so, the parties should submit a stipulation to file an amended complaint. Plaintiff may <u>not</u> condition amendment on Defendant’s waiver of its right to file a demurrer or motion to strike the amended complaint. No later than five court days before the continued hearing date, defendant’s counsel is ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.
12.	BAUMAN VS. CITY OF LAGUNA NIGUEL 2024-01401532	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Defendant City of Laguna Niguel’s Motion for Summary Judgment/Adjudication is DENIED.

Defendant's request for judicial notice (ROA 145) of federal government weather and astronomical records is granted. Plaintiff's request for judicial notice (ROA 195) of Laguna Niguel Code provisions, City Council meeting minutes and City resolution is granted.

Plaintiff's objections to evidence (ROA 210) are overruled.
Defendant's objections (ROA 197) are overruled.

Legal Standard:

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid.Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof."

(*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, footnote omitted.)

Government Code section 835 sets out the elements of dangerous condition of public property:

"Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition."

However, *Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927 states,

"[A] property owner is not liable for damages caused by a minor, trivial or insignificant defect in property. (*Whiting v. City of National City* (1937) 9 Cal.2d 163, 69 P.2d 990.) Courts have referred to this simple principle as the 'trivial defect defense,' although it is not an affirmative defense but rather an aspect of duty that plaintiff must plead and prove. The 'trivial defect defense' is

available to private, nongovernmental landowners. (*Ursino v. Big Boy Restaurants* (1987) 192 Cal.App.3d 394, 398–399, 237 Cal.Rptr. 413.) As the *Ursino* court stated, ‘persons who maintain walkways, whether public or private, are not required to maintain them in an absolutely perfect condition.’ [¶] Aside from the size of the defect, the court should consider whether the walkway had any broken pieces or jagged edges and other conditions of the walkway surrounding the defect, such as whether there was debris, grease or water concealing the defect, as well as whether the accident occurred at night in an unlighted area or some other condition obstructed a pedestrian's view of the defect.”

“[T]he duty of care imposed on a property owner, even one with actual notice of a defect, does not require the repair of minor or trivial defects.” (*Cadam v. Somerset Gardens Townhouse HOA* (2011) 200 Cal.App.4th 383, 389.) “In summary, persons who maintain walkways, whether public or private, are not required to maintain them in an absolutely perfect condition. The duty of care imposed on a property owner, even one with actual notice, does not require the repair of minor defects.” (*Ursino v. Big Boy Restaurants* (1987) 192 Cal.App.3d 394, 398.)

Summary of Allegations and Evidence:

Defendant moves for summary judgment as to Plaintiff’s first cause of action for dangerous condition of public property on the grounds that (1) the alleged defect was trivial as a matter of law and (2) Plaintiff cannot establish the City created or had actual/constructive notice of the alleged condition. (Notice, p. 2.)

In the First Amended Complaint (FAC) Plaintiff alleges she was walking eastbound on the sidewalk adjacent to 30318-30322 Benecia Avenue in Laguna Niguel on 6/13/23 when she “tripped over a raised, uneven, unlevel, and displaced portion of the sidewalk, causing her to fall to the ground and sustain severe injuries and damages, including, without limitation, a broken shoulder and broken/dislocated wrist.” (FAC, ¶ 22.) She alleges Defendant City “negligently created the dangerous, unsafe, and defective condition of the sidewalk and/or failed to maintain, repair, inspect, and/or warn against it. Defendants had notice of the dangerous, unsafe, and defective condition of the sidewalk for a long enough time to have protected against it and failed to do so.” (¶ 27.)

Defendant owned and controlled the subject sidewalk. (Plaintiff’s Additional Fact [PAF] 5.)

Plaintiff, 74 years old at the time of the accident, had lived less than ¼ mile from the subject location since 1974. (Defendant’s Undisputed Material Fact [UMF] No. 4; PAF 1.) While on an

evening walk with her husband and son, Plaintiff's left foot caught the uneven sidewalk on the left side of the walkway, causing her to fall on the right side of her body. (PAFs 1, 2.)

The incident occurred around 7:45 p.m. on 6/13/23, before sunset at 8:02 p.m. (UMFs 12, 13.) There was no precipitation that day and the sidewalk was not wet or slippery at the time. (UMFs 9, 15.)

The City has no prior reports of trip and fall incidents at the location and the subject sidewalk had not been identified as requiring repair as part of the City's sidewalk inspection/maintenance program prior to the accident. (UMFs 17-20.) The City remediated the subject sidewalk after the incident on 7/7/23. (PAF 8.)

Plaintiff's son measured and took photos of the subject sidewalk with an inch ruler the day after the incident, 6/14/23. (UMF 1; PAF 6; Defendant's Exs. 3-9.) Based on his review of those photos, the City's expert Mr. Rosenthal opined the offset between the two sidewalk panels was approximately $\frac{1}{2}$ inch near the right sidewalk edge and $\frac{5}{8}$ inch near the left middle sidewalk edge but did not exceed $\frac{7}{8}$ inch on the left side. (UMFs 2, 3; Rosenthal Decl., ¶¶ 9, 11.)

However, Plaintiff's expert Mr. Rosescu opines that, based on analysis of the June 2023 photos and his own measurements taken in August 2026, the offset was " $\frac{25}{32}$ inch and $\frac{23}{32}$ inch at six inches and one foot from the parkway edge, respectively..." based on his own measurements and " $\frac{13}{16}$ inch" based on the analysis of the June 2023 photos. (PAF 9; Rosescu Decl., ¶¶ 7, 12 and Plaintiff's Ex. Q.) In summary, Plaintiff's expert opines that in the location where Plaintiff tripped, the offset was slightly over $\frac{3}{4}$ inch.

City's Creation or Actual/Constructive Notice of the Defect:

Defendant asserts Plaintiff cannot show the City created the dangerous condition, i.e. the offset, and there is no evidence of prior incidents or inspections placing the City on notice of the condition.

Plaintiff contends that the concrete slabs shown in the June 2023 photos are of different colors/textures, showing the City had performed work at the site and should have been aware of the offset. (See Defendant's Ex. 9.) The lower slab is significantly lighter in color and appears to have been ground or sanded down compared to the higher slab. In response to Plaintiff's discovery, the City has not identified a third party or contractor who performed such work. (PAF 23.)

At this stage, the visual evidence of relatively recent work having been performed on the concrete slabs which created the offset is

sufficient to raise a triable issue of fact regarding whether the City created the offset by work the City or one of its agents performed on the sidewalk, which was undisputedly owned and maintained by the City.

Trivial Defect:

Plaintiff and Defendant's experts opine that the vertical offset height was between 10/16 and 13/16 of an inch, very close to $\frac{3}{4}$ inch, at the location where Plaintiff's foot likely caught the edge.

"California Courts of Appeal typically follow a two-step analysis for determining whether a sidewalk defect is trivial, i.e., not dangerous, as a matter of law. First, the court reviews evidence regarding the type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff's knowledge of the area. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law." (*Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 110–111 [cleaned up].)

"Sidewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law." (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1107.) However, "when the size of the depression begins to stretch beyond one inch the courts have been reluctant to find that the defect is not dangerous as a matter of law." (*Fielder v. City of Glendale* (1977) 71 Cal.App.3d 719, 726.)

In *Cadam v. Somerset Gardens Townhouse HOA*, *supra*, 200 Cal.App.4th at 389-390, the plaintiff tripped on an approximately $\frac{3}{4}$ inch separation in the walkway, which was well-lit at the time of the accident. The appellate court found this condition to be a trivial defect due to its size, lack of obstruction or history of falls, and the plaintiff's failure to see it because she was not looking. In *Caloroso v. Hathaway*, *supra*, 122 Cal.App.4th at 927-929, the plaintiff tripped over an approximately $\frac{1}{2}$ inch crack in the walkway, and the Court of Appeal upheld the grant of summary judgment as a trivial defect. In *Ursino v. Big Boy Restaurants*, *supra*, 192 Cal.App.3d at 397-399, a $\frac{3}{4}$ inch raised portion of sidewalk was deemed trivial in light of the absence of prior falls.

The Court may consider factors other than height in determining whether a defect is trivial, including the lighting, visibility, and obvious nature of the defect which would allow a reasonable pedestrian to avoid injury by using due care. (*Stack v. City of Lemoore*, *supra*, 91 Cal.App.5th at 110–111; *Caloroso v. Hathaway*, *supra*, 122 Cal.App.4th at 927.)

		Here, the Court cannot say as a matter of law that the offset was trivial. Although California courts have upheld a finding of trivial defect for similar-sized offsets of approximately $\frac{3}{4}$ inch, the offset was not a consistent height across the separation and a jury could reach different conclusions regarding its height depending where it believes Plaintiff tripped, with the left side of the offset reaching nearly one inch according to Plaintiff's expert and $\frac{7}{8}$ inch according to Defendant's expert. Moreover, Plaintiff has presented evidence that the lighting was low due to approaching sunset and a nearby hill, and that the offset was unlikely to be seen by pedestrians under the totality of circumstances. Therefore, Plaintiff has adequately demonstrated a triable issue regarding whether the defect was trivial for purposes of this motion.
13.	SOLIMAN VS. LAWYERS TITLE COMPANY 2025-01454308	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Defendant Lawyers Title Company's motion for summary judgment as to plaintiff Salaheldin S. Soliman's First Amended Complaint ("FAC") is GRANTED. Plaintiff's Evidentiary Objections to the Declaration of Phillip Rodriguez are OVERRULED. Defendant's Evidentiary Objections to Plaintiff's Evidence is OVERRULED. The FAC alleges a single cause of action for Promissory Estoppel against Defendant. "The elements of a promissory estoppel claim are '(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.' [Citation.]" (<i>Granadino v. Wells Fargo Bank, N.A.</i> (2015) 236 Cal.App.4th 411, 416.) Defendant moves for judgment on the grounds Defendant did not make a clear and unambiguous promise. " ' "[A] promise is an indispensable element of the doctrine of promissory estoppel. The cases are uniform in holding that this doctrine cannot be invoked and must be held inapplicable in the absence of a showing that a promise had been made upon which the complaining party relied to his prejudice" [Citation.] The promise must ... be "clear and unambiguous in its terms." [Citation.] "Estoppel cannot be established from ... preliminary discussions and negotiations." ' ' " (<i>Granadino, supra</i>, 236 Cal.App.4th at p. 417.)

Defendant has submitted evidence to show that in 2023, Plaintiff was interested in purchasing the real property located at 2712 North Bentley Street, Orange, California 92867 (the “Subject Property”). (Defendant’s Undisputed Material Fact (“UMF”) No. 1.) Before purchasing the Subject Property, Plaintiff claims his agent, Zeyad Elalami, contacted Phillip Rodriguez, a Chief Advisory Title Officer at Lawyers Title Company, to inquire about the state of the Subject Property’s title on Plaintiff’s behalf. (UMF Nos. 2, 3.) Plaintiff claims that Rodriguez represented to Elalami on a phone call that “there existed no senior lien on the Subject Property.” (UMF No. 4.) Elalami testified that he recalled Rodriguez told him, of the Subject Property, “it’s clear to go for it.” (UMF No. 5.) Plaintiff purchased the Subject Property at a foreclosure auction in 2023, purportedly in reliance on Rodriguez’ alleged representation to Elalami concerning the Subject Property. (UMF No. 6.) After purchasing the Subject Property, Plaintiff discovered a senior Deed of Trust, recorded on July 17, 2006, still encumbered the Subject Property. (UMF No. 10.)

Plaintiff never hired Lawyers Title Company to provide an abstract of title regarding the Subject Property prior to his purchase of the Subject Property. (UMF No. 11.) Lawyers Title Company never provided Plaintiff with an abstract of title regarding the Subject Property prior to Plaintiff’s purchase of the Subject Property. (UMF No. 12.) Plaintiff did not purchase a title insurance policy from Lawyers Title Company with respect to the Subject Property, which did not issue a preliminary title report to Plaintiff prior to his purchase of the Subject Property. (UMF Nos. 13-14.)

Here, Rodriguez’s alleged statement to Elami that “it’s clear to go for it” does not constitute a legally sufficient promise for purposes of Plaintiff’s claim for Promissory Estoppel. “A ‘promise’ is an assurance that a person will or will not do something.” (*Granadino, supra*, 236 Cal.App.4th at p. 417.) A statement that a lien does not exist is a representation of an existing fact, not a promise about future conduct. (*Granadino, supra*, 236 Cal.App.4th at p. 417 [Allegation in complaint that “appellants were being reviewed for loan modification and there was no trustee’s sale pending” was a “mere statement of fact” because “[n]othing within this sentence assures appellants that Wells Fargo would refrain from completing a trustee’s sale in the future.”].) Therefore, Defendant has met its initial burden to show that Defendant did not make a clear and unambiguous promise.

The burden shifts to Plaintiff. Plaintiff contends “Rodriguez’s words promised the lien position Plaintiff would receive if he completed the acquisition.” (Opp., 5:26-27.) Rodriguez’s words “the prelim looks good,” “there are no other liens,” and “go for it,” characterize the condition of title after a transaction is completed, and are a representation of fact, not a promise, or “an assurance that [Defendant] will or will not do something.” (*Granadino, supra*, 236

	Cal.App.4th at p. 417.) Specifically, Rodriguez’s words do not show a promise by Defendant to engage in any future conduct on Plaintiff’s behalf if an undisclosed senior lien existed. Therefore, Plaintiff has failed to show a triable issue of material fact as the existence of a promise. Therefore, the Motion is GRANTED. Moving Defendant to give notice.
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